

BILL C-XX

An Act to prohibit chemical additives and flavoring agents in tobacco products

Pure Tobacco Act

PREAMBLE

WHEREAS Parliament recognizes that the addition of non-tobacco substances and chemical additives to tobacco products may increase toxicity, alter palatability, and enhance addictiveness;

AND WHEREAS Parliament seeks to protect public health by ensuring that tobacco products sold or distributed in Canada consist exclusively of unadulterated raw tobacco leaf and water;

NOW, THEREFORE, Her Majesty, by and with the advice and consent of the Senate and House of Commons of Canada, enacts as follows:

1. Short Title

This Act may be cited as the **Pure Tobacco Act**.

2. Interpretation

(1) In this Act,

"Chemical additive" means any substance, compound, or ingredient—other than raw leaf tobacco and water—intentionally added to a tobacco product during any stage of manufacturing, processing, or packaging;

"Flavoring agent" means any synthetic or natural substance added to a tobacco product that imparts a distinguishing aroma, flavor, or sensation, including but not limited to menthol, fruit, sweet, or spice flavors;

"Minister" means the Minister of Health;

"Tobacco product" means cigarettes, little cigars, cigarette paper, tubes, or blunt wraps intended for human consumption or use.

(2) Unless otherwise provided, words and expressions used in this Act have the same meaning as in the *Tobacco and Vaping Products Act*.

3. Prohibition

Notwithstanding any provision of the *Tobacco and Vaping Products Act* or any regulation made under it, no person shall manufacture, sell, import for sale, advertise, or distribute any tobacco product that contains

any chemical additive or flavoring agent.

4. Testing and Compliance

(1) The Minister may require any manufacturer or importer of tobacco products to submit samples of their products for laboratory analysis to verify compliance with section 3.

(2) Every manufacturer or importer shall maintain detailed records of all raw materials, water sources, and processes used in the manufacturing of tobacco products and provide such records to an inspector upon request.

5. Inspectors and Enforcement

(1) An inspector designated under the *Tobacco and Vaping Products Act* may, for the purpose of ensuring compliance with this Act, enter any place in which they have reasonable grounds to believe a tobacco product is manufactured, tested, stored, or sold.

(2) An inspector may seize, detain, or order the forfeiture of any product that fails to comply with section 3.

6. Offences and Penalties

(1) Every person who contravenes section 3 is guilty of an offence and liable:

- (a) on summary conviction, to a fine not exceeding \$250,000 or to imprisonment for a term not exceeding one year, or to both; or
- (b) on conviction on indictment, to a fine not exceeding \$1,000,000 or to imprisonment for a term not exceeding two years, or to both.

(2) Where a corporation commits an offence under this Act, any officer, director, or agent of the corporation who directed, authorized, or acquiesced in the commission of the offence is a party to and guilty of the offence.

7. Regulations

The Governor in Council may make regulations for carrying out the purposes and provisions of this Act, including regulations:

- (a) prescribing testing methodologies and standard thresholds for detecting trace substances;
- (b) establishing maximum permissible levels of natural impurities found in raw tobacco leaf or water; and
- (c) defining requirements for record-keeping, reporting, and product certification by manufacturers.

8. Transitional Provisions

Section 3 does not apply in respect of tobacco products manufactured prior to the coming into force of this Act, provided that such products are sold or distributed within 180 days after the day on which this Act receives Royal Assent.

9. Coming into Force

This Act comes into force 180 days after the day on which it receives Royal Assent.

